



URGENT

By Email: info@ethichawks.co.za

Mr WW Matthee
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2 July 2026

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Your reference:

Our reference: AFR1282

Dear Mr Matthee

**Re: Breach of the interim order of the Western Cape High Court – submission of the “*Consolidated Forensic Oversight Report*” to Parliament – Demand for retraction
AfroCentric Investment Corporation Limited // Wilbur William Matthee (Case No. 2026-086906)**

1 Introduction

- 1.1 As you are aware, we act on behalf of AfroCentric Investment Corporation Limited (**AfroCentric**), its subsidiaries and associated companies, as well as its directors and office bearers.
- 1.2 We refer to the above matter, to our letter to you dated 22 June 2026, and to our correspondence to the Office of the Speaker of the National Assembly dated 3 June 2026 and 23 June 2026.
- 1.3 The purpose of this letter is to place on record that you have breached the interim order of the Western Cape High Court, to demand that you retract your submission to Parliament, and to set out the consequences that will follow should you fail to do so.

2 The interim order

- 2.1 On 16 April 2026, the Western Cape High Court granted a *rule nisi* operating as an interim interdict against you under Case No. 2026-086906 (the **Order**). On 28 May 2026, the Order and the *rule nisi* were extended, pending final determination, to 1 March 2027.
- 2.2 In terms of paragraph 2.1 of the Order, you are interdicted and restrained from disclosing, disseminating, publishing, or communicating to any third party any confidential, proprietary, or commercially sensitive information belonging to AfroCentric or any of its subsidiaries, including any document referred to as the “*Mahlangu Root Cause Analysis*” or “*Mahlangu RCA*”, or any information relating to AfroCentric’s internal systems, clinical processes, financial affairs, or integration architecture.
- 2.3 In terms of paragraph 2.2 of the Order, you are interdicted and restrained from making, publishing, or causing to be published any defamatory, false, or malicious statements concerning AfroCentric, its directors, officers, employees, auditors, or any regulatory bodies, including any statement alleging fraud, market deception, misconduct, or impropriety on the part of AfroCentric or any person associated with it.
- 2.4 The Order remains in full force and effect. It is binding upon you and you are obliged to comply with it.

3 Your breach of the Order

- 3.1 It has come to our client's attention that, on 22 June 2026, you transmitted by email from info@ethichawks.co.za a communication entitled "*NOTIFICATION: Final Closure Report & Administrative Record (Case Nos: 2026-077546, 2026-083299, 2026-066952, 2026-086906)*".
- 3.2 That email was copied to the Portfolio Committee on Justice of the Parliament of the Republic of South Africa, at the email addresses mmthonjeni@parliament.gov.za and vramaano@parliament.gov.za, and enclosed, among other materials, your "*Consolidated Forensic Oversight Report*" (described by you as a "*Digital Dossier*") together with its related annexures.
- 3.3 The Consolidated Forensic Oversight Report and its annexures contain precisely the categories of information that the Order restrains you from disclosing. Amongst other things, the report discloses confidential and proprietary information concerning AfroCentric's and Medscheme's internal systems, clinical processes and the so-called Gexus-DMS "*integration architecture*" (paragraph 2.1 of the Order), and it makes statements alleging fraud, market deception, misconduct and impropriety on the part of AfroCentric, its directors and its officers – including allegations that AfroCentric's Integrated Annual Report 2025 is a "*materially false document*" and a "*corporate cover-up*", and allegations of "*perjury*" and "*delinquency*" against named directors (paragraph 2.2 of the Order).
- 3.4 Your transmission of these materials to Parliament, including to the Portfolio Committee on Justice, accordingly constitutes a breach of paragraphs 2.1 and 2.2 of the Order.

4 You were placed on notice

- 4.1 You cannot contend that your conduct was inadvertent. In our letter to you dated 22 June 2026, we recorded our client's concern that you had again expressed an intention to submit to Parliament – and thus potentially to the public at large – documents containing confidential, proprietary and/or personal information subject to the Order, and we placed you on express notice that such disclosure would violate the terms of the Order and would place you in contempt of court. We annexed to that letter a copy of the Order of 16 April 2026 and the order of 28 May 2026.
- 4.2 Notwithstanding that warning, you proceeded to make such transmissions to Parliament. Your breach was therefore deliberate and made with full knowledge of the terms of the Order.
- 4.3 To the extent that it is your position that you are legally entitled to make submissions to Parliament in contravention of the Order, we wish to place on record that this view is incorrect, and we encourage you to seek professional legal advice before proceeding any further on this assumption. For present purposes we record that the publication of the information covered by the Order to Parliament is not protected by the Constitution, legislation or any other provision of law. So too, you have no legal basis to defame our client to Parliament.

5 Demand

- 5.1 In the circumstances, our client demands that you:
- (1) retract, in its entirety, your submissions to Parliament – including, but not limited to, the *Consolidated Forensic Oversight Report* and all related annexures – by written notice to the Office of the Speaker of the National Assembly and to the Portfolio Committee on Justice, requesting that the materials be withdrawn from the parliamentary record and not be placed before, distributed within, or acted upon by Parliament or any of its committees;
 - (2) provide our offices with written confirmation that the retraction has been effected, together with a copy of the written notice of retraction, by no later than **17h00 on 3 July 2026**; and
 - (3) provide our offices with a written undertaking that you will henceforth not act in contravention of the terms of the Order.

6 Consequences of non-compliance

- 6.1 Should you fail to effect the retraction and to furnish our offices with written confirmation thereof and undertaking by 17h00 on 3 July 2026, our client will, without further notice to you, bring an urgent application in the Western Cape High Court to hold you in contempt of the Order.
- 6.2 In that application, our client will seek all appropriate relief, including a declaration that you are in contempt of the Order, an order committing you to imprisonment and/or the imposition of an appropriate sanction, and such further and ancillary relief as the Court may deem fit. Our client will seek an order that you pay the costs of the application on the attorney-and-client scale.
- 7 This letter is written without prejudice to our client's rights, all of which are expressly reserved.

Yours faithfully

A handwritten signature in black ink, appearing to be 'F. Barker', with a long horizontal line extending to the right.

Frances Barker, Associate
Jason Whyte, Director
Deneys